



SPONSOR: Sen. Poore & Rep. Heffernan

DELAWARE STATE SENATE
153rd GENERAL ASSEMBLY

SENATE BILL NO. 92

AN ACT TO AMEND TITLE 16 OF THE DELAWARE CODE RELATING TO THE UNIFORM HEALTH-CARE DECISIONS ACT.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

1 Section 1. Amend § 2527, Title 16 of the Delaware Code by making deletions as shown by strike through and
2 insertions as shown by underline as follows:

3 § 2527. Construction.

4 (e) An advance health-care directive created before, on, or after September 30, 2025, must be interpreted in
5 accordance with ~~other~~ law of this State, excluding the State's choice-of-law rules, at the time the directive is implemented.

6 Section 2. This Act takes effect on September 30, 2025.

SYNOPSIS

Section 2527 of Title 16, which will become effective on September 30, 2025, originates from Section 27 of the Uniform Law Commission's Uniform Health-Care Decisions Act. The Uniform Law Commission found that the word "other" was added in error to the final Uniform Health-Care Decisions Act. This Act adopts this correction by deleting the word "other" from § 2527 of Title 16.

This Act takes effect on September 30, 2025, to coincide with the effective date of § 2527 of Title 16.

Author: Senator Poore